

There is no claim that amendment will cause loss of evidence or witnesses; instead, Defendants argue, without authority, that “Plaintiffs should not be permitted to avoid adjudication of the claims they actually pleaded by changing the pleading after Defendants have already incurred the burden and expense of preparing a dispositive motion.” (Opp. at 14:12-13.) All three of the cases cited by Defendants in support of their argument that the Court should deny the motion because it would moot their pending summary judgment hearing are distinguishable. (Opp. at 14:2-8 [citing *Applegate v. Carrington Foreclosure Services, LLC* (2025) 112 Cal.App.5th 356, 368-369 (*Applegate*); *Melican v. Regents of University of California* (2007) 151 Cal.App.4th 168, 176 (*Melican*); and *Falcon v. Long Beach Genetics, Inc.* (2014) 224 Cal.App.4th 1263, 1280 (*Falcon*).].)

In all three cases, the request to amend the underlying pleading was made orally at the hearing on the motion for summary judgment that would have been rendered moot. As the court in *Applegate* noted, “it would have been within the trial court’s discretion to deny the request for leave to amend either because [plaintiff] failed to proffer an amendment that stated a cause of action or because the circumstances demonstrated unexplained delay, lack of diligence, and unfairness to defendants.” (*Applegate, supra*, 112 Cal.App.5th at p.369.) Here, Plaintiffs filed a regularly noticed motion that complies with California Rule of Court 3.1324 subsections (a) and (b). And, as the Court described above, the facts do not support a conclusion that Plaintiffs unduly delayed in moving to amend.

Finally, Defendants’ additional arguments regarding futility and inflammatory accusations are directed at the merits of the proposed amendment and are not grounds to deny amendment.

Because the Court concludes that Plaintiff has not been dilatory, and any prejudice to the Defendants is ameliorated by the new trial date and extended deadlines based on that new trial date, the motion for leave to amend is **granted**.

3. 9:00 AM CASE NUMBER: C24-02090

CASE NAME: LEAH FREEMAN VS. DAVID HUNTER

***FURTHER CASE MANAGEMENT CONFERENCE**

FILED BY:

TENTATIVE RULING:

It appears from the documents before the Court that (a) Christopher Brown is now represented; (b) Cross-Complainants will be dismissing the case against him; and (c) conversations about resolution are ongoing. The Court continues this Case Management Conference to September 15, 2026, at 8:30 am. No appearances required for August 20, 2026.

Law & Motion

4. 9:00 AM CASE NUMBER: C23-02568

CASE NAME: TYLER LIND VS. SEGWAY INC.

HEARING IN RE: APPLICATION TO APPEAR PRO HAC VICE AS TO EDAN BENMELECH FOR DEF SEGWAY INC.

FILED BY: SEGWAY INC.

TENTATIVE RULING: